

The complaint

Mr N is unhappy that Fairmead Insurance Limited (Fairmead) declined his claim for storm damage under his home insurance policy.

What happened

Mr N found water leaking through the ceiling in his home due to damage to his roof. He arranged a repair to the roof and then contacted Fairmead to make a claim for storm damage. Fairmead sent a surveyor to inspect the damage. Fairmead then turned down the claim because the roof damage wasn't assessed to be the result of a storm and, although the ceiling damage was assessed to be the result of a one-off incident, the insurance excess was more than the cost of the repair.

When Mr N complained to Fairmead, it maintained its decision to decline the claim. So, Mr N complained to this service. Our investigator didn't uphold the complaint. She said Fairmead had acted reasonably in declining the claim, as there wasn't evidence that the damage to the roof was the result of a one-off storm incident.

As Mr N did not agree, the complaint has been referred to me.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

When we look at a storm claim complaint, there are three main issues we consider:

1. do we agree that storm conditions occurred on or around the date the damage is said to have happened?
2. is the damage claimed for consistent with damage a storm typically causes?
3. were the storm conditions the main cause of the damage?

We're only likely to uphold a complaint where the answer to all three questions is yes.

On the first question, looking at local weather data, I can see that there were storm strength winds and some rain around the time of the claim. So, I think the answer to the first question is yes.

On the second question, I've thought about whether the damage to the roof was typical of a storm. I've listened to the phone call when Mr N first contacted Fairmead about the damage. Mr N described the roof as "*leaking from every angle*". He also said the roof was fairly new and that he had already repaired the damage before contacting Fairmead due to concerns about water getting into the electrics in his house.

Mr N also provided photos showing the roof from various angles, a single broken roof tile on the ground, the internal damage and the exterior of the house, along with an invoice for the repair work. The original invoice had a date from the previous year on it. Mr N explained that

the company had made a mistake when it prepared the invoice and provided an updated version with a date around the time of the claim. The invoice described the repaired damage as:

“Roof repair, damage due to broken tile (appeared to have been damaged by strong storm / tree bark landing on tile). Removed part tiles, two side lead, replaced damaged tile, resealed with lead / cement. Tested / no further water leak, overall roof is fairly new, apx 1 year old and in good condition.”

When Fairmead’s surveyor visited, the roof damage had already been repaired, so this limited what the surveyor was able to assess. The surveyor took a number of photos of the roof, the exterior of the house and a pile of items that appeared to be debris from the roof, as well as some photos of the interior damage. The surveyor concluded that there was no evidence of storm damage to the roof and that the cause of the damage was the *“Natural breakdown of materials”*.

So, the roof damage therefore seemed to be that the roof was *“leaking from every angle”* as a result of a single roof tile being broken possibly by tree bark landing on it. I’m aware that Mr N has also said that damage might have been caused by branches detaching from a tree and hitting the roof during the storm. But neither the company that carried out the repair or the surveyor provided evidence of this and looking at the photos taken by the surveyor and those provided by Mr N, I also haven’t seen evidence of detached tree branches either.

I’ve thought about whether a storm would typically cause tree bark to land on a roof, cracking a single tile and causing extensive leaking. Having done so, I don’t think that is typical. Even if a storm did cause tree bark to land on a roof, I don’t think that is likely to be a heavy enough material to crack a tile or to cause a leak *“from every angle”*. So, on the second question, in my view, the answer is no because I don’t think the damage is typical of damage a storm would cause.

It therefore follows that, for the third question, I don’t think the storm conditions were the main cause of the damage.

I’m aware that Fairmead also turned down the part of the claim related to the internal damage. I think that was reasonable given that it assessed the cost of the work to be less than the excess payable under the policy.

So, thinking about all of the above I think that Fairmead acted reasonably in turning down the claim as there wasn’t sufficient evidence to show that the damage was the result of an insured event. I don’t uphold this complaint or require Fairmead to do anything further.

My final decision

For the reasons I have given, it is my final decision that the complaint is not upheld.

Under the rules of the Financial Ombudsman Service, I’m required to ask Mr N to accept or reject my decision before 31 December 2020.

Louise O’Sullivan
Ombudsman